

24TRCV02070 24TRCV02070

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Case Number: 24TRCV02070 Hearing Date: August 10, 2026 Dept: M

LOS ANGELES SUPERIOR

COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Monday, August 10, 2026

Department M Calendar No.

PROCEEDINGS

Teri Reinhardt v. Gavin Glynn, et al.

24TRCV02070

1. Teri

Reinhardt's Motion to Quash or Modify Deposition Subpoenas and Request for Sanctions

TENTATIVE RULING

Teri

Reinhardt's Motion to Quash or Modify Deposition Subpoenas and Request for Sanctions is denied.

Background

Plaintiff

filed the Complaint on June 20, 2024 and the First Amended Complaint on October

13, 2025. Plaintiff alleges that she was involved in a bicycle collision with Defendants.

Motion

to Quash Third Party Subpoenas Duces Tecum

Code

Civ. Proc., § 1985.3(g) states: "Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum."

Pursuant

to Code Civ. Proc. § 1987.1: "If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person."

Cal.

Rules of Court Rule 3.1345(a)(5) states:

"Except

as provided in (b), any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion: (5) To compel or to quash the production of documents or tangible things at a deposition."

Cal.

Rules of Court, Rule 3,1345(b) states:

"A

separate statement is not required under the following circumstances:

(1)

When no response has been provided to the request for discovery; or

(2)

When a court has allowed the moving party to submit--in place of a separate statement--a concise outline of the discovery request and each response in dispute."

Pursuant

to CCP § 1987.1, Plaintiff moves to quash or modify the deposition subpoenas issued to (1) Mary Kerr, M.D., (2) Anthem Blue Cross Life and Health Insurance Company, (3) Cigna Health and Life Insurance Company, and (4) Goldschmid, Silver and Spindel. The motion is made on the following grounds: "good cause exists for the order sought as due to the over broad requests in the deposition subpoena seek records not within the permissible scope of discovery in that they seek privileged records infringing on Plaintiff's right of privacy, violate the California Peace Officer Personnel Records Act as codified in California Penal Code, sections 832.7 and 832.8, seek records not relevant to the subject matter, and are harassing, unjustly burdensome and oppressive such that there is no good cause for the production of all of the documents sought, and on the grounds that justice requires the same to protect the plaintiff, from unwarranted annoyance, embarrassment, harassment, oppression, undue burden and expense." (Notice of Motion, p. 2, lines 12-23).

"The

state Constitution expressly grants Californians a right of privacy. (Cal. Const., art. I, §1.) Protection of informational privacy is the provision's central concern." Williams v.

Superior Court (2017) 3 Cal.5th 531, 552. "[W]hen a discovery request seeks information implicating the constitutional right of privacy, to order discovery simply upon a showing that the Code of Civil Procedure section 2017.010 test for relevance has been met is an abuse of discretion." Williams v. Superior Court, supra, 3 Cal.5th at 556 (citations omitted).

In

Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 35-37, the California Supreme Court "established a framework for evaluating potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest,

an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. . . . The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” *Williams v. Superior Court*, *supra*, 3 Cal.5th at 552 (citations omitted). In *Hill*, the Court “explained that not ‘every assertion of a privacy interest under article I, section 1 must be overcome by a “compelling interest.” . . . A “compelling interest” is still required to justify ‘an obvious invasion of an interest fundamental to personal autonomy.’” *Id.* at 556.

Disclosure

depends upon balancing the need for discovery against the need for confidentiality. “Courts must instead place the burden on the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies, as *Hill* requires.” *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.

Discovery

of relevant medical history may be allowed because defendant may have no other methods to obtain this type of information.

See *Palay v. Superior Court*

(1993) 18 Cal.App.4th 919, 933-34 disapproved of on other grounds by *Williams v. Superior Court* (2017) 3 Cal.4th 531, 557, n. 8.

However, the lifetime of plaintiff’s medical history may not be discoverable. Plaintiff’s right of

privacy is protected as to physical and mental conditions unrelated to the claim or injury sued upon. See *Britt v.*

Superior Court (1978) 20 Cal.3d. 844, 864.

Thus,

Plaintiff is correct that a lifetime of medical conditions and history may not be discoverable, but, that the discoverable information is limited to the physical and mental conditions that are related to the claim sued upon. Here, however, Plaintiff simply concludes that the subpoenas seek overly broad matter without providing any firsthand competent evidence to demonstrate that the subpoenas

are seeking information that are not related to the injuries at issue in this action. For example, a simple declaration stating (for example purposes only) that her claimed injuries, in this action, consisted solely of injuries to her neck could have eliminated the attempt to obtain information for all the other parts of the body mentioned in the subpoenas. However, as presented currently with this motion, Plaintiff's contention that the subpoenas are overly broad is conclusory. Plaintiff has not presented any evidence of what her injuries consist of and why the subpoenas are seeking information outside the scope of those injuries.

However, the Court notes that Defendant, in opposition, attached Plaintiff's responses to Form Interrogatories 6.2 and 6.3. In her responses, Plaintiff appears to allege numerous injuries related to this accident – including “jaw fractures, broken nose, fractured teeth, TMJ injury, loss of consciousness, facial lacerations, headaches, imbalance, sensitivity to lights, right arm numbness, loss of sensation, loss of sleep, left knee pain, right shoulder pain, right breast capsulating injury, neck pain, short term memory loss, depression, distress, embarrassment, and decreased sex drive.” (Defendant's Opposition, p. 4, lines 9-13 referencing Defendant's Ex. B.) Thus, if these are the injuries to which Plaintiff seeks damages from Defendant, Plaintiff has placed these medical conditions at issue.

Plaintiff

also contends that Cal. Penal Code Sections 832.7 and 832.8 prevent Defendant from obtaining records related to the prior workers compensation claim which involved prior injuries suffered in 2010. However, these sections deal with personnel records of peace officers held by a state or local agency. The records sought in the subpoena are from Plaintiff's attorneys and not from a state or local agency.

In

addition, while workers compensation records are protected by privacy rights, the protection is not absolute and such records may be available from a Court order. “[P]laintiffs waive their physician-patient confidential communication privilege as to the medical conditions placed by them in issue in a case, and information regarding such conditions are discoverable.” Voelker (Sept. 2, 2015) 80 Cal. Comp. Cases 1233 at p. 2. Again, by filing a claim and placing medical conditions at issue, such privacy protections may be waived. Defendant has established that Plaintiff may be making a claim for injuries which she had

a previously sustained injury and thus the balancing test noted above weighs in favor of releasing the information sought.

In

addition, the Court notes that the time frame of the material sought is somewhat large beginning in 2010 to the present. However, Defendant has adequately explained why the beginning date of 2010 is important since this is the date in which Plaintiff suffered a prior injury to parts of the body that she is now potentially seeking damages.

Finally,

with the Reply, Plaintiff presents numerous arguments concerning the impropriety of documents that Defendant already obtained. However, any potential abuses of discovery already committed by the parties are not the subject of this motion.

The

motion to quash or modify is denied.

Sanctions

Code

Civ. Proc., § 1987.2(a) states:

“Except

as specified in subdivision (c), in making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.”

Plaintiff's

request for monetary sanctions and Defendant's counter request for sanctions are denied. The Court finds that the motion was not made in bad faith without substantial justification.

Defendant

is ordered to give notice of this ruling.